



2025:UHC:6946

SL. No.	Date	Office Notes, reports, orders or proceedings or directions and Registrar's order with Signatures	COURT'S OR JUDGE'S ORDERS
			C24 No. 60 / 2023 <u>Hon'ble Manoj Kumar Tiwari, J.</u> Mr. Vijay Khanduri, Advocate, for the applicant. Mr. Ajay Joshi, Advocate, i/b Mr. DCS Rawat, Advocate for the respondent. (2) Wife has moved this application seeking transfer of divorce suit, filed by her husband, from Family Court, Kotdwar to Family Court, Chamoli. The said suit is numbered as Matrimonial Case No. 120 of 2023. (3) It is contended by the applicant that she is serving as Assistant Teacher in a Govt. Primary School in Chamoli and as a single parent, she has also to look after her minor daughter, aged about 12 years, therefore it is not possible for her to attend the proceedings before Family Court at Kotdwar on each and every date of hearing. It is further contended that it takes not less than five hours to reach Kotdwar from Chamoli. (4) Learned Counsel appearing for the respondent, however, opposed the prayer for transfer and submitted that respondent is posted in Indian Army in North Eastern Region, therefore it would be difficult for him to visit Chamoli, if the case is transferred. (5) Law is well settled that in a matrimonial dispute, when request for transfer is made, convenience of wife has to be given precedence. Since in the present case, applicant is residing in Chamoli, where she is serving as Assistant



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			Teacher in a Govt. Primary School, and she has a minor daughter, therefore, balance of convenience is in favour of wife (applicant). (6) Accordingly, transfer application is allowed. Proceedings of Matrimonial Case No. 120 of 2023 are transferred from Family Court, Kotdwar to the Court of competent jurisdiction in Chamoli. (7) Registry to communicate this order to both courts concerned within 48 hours. (Manoj Kumar Tiwari, J.) 7.8.2025 Pr MANOJ KUMAR 
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